

2025:PHHC:000701



269.

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH**

CRM-M-52566-2024

Date of decision: 07.01.2025

Harkesh Sharma and another

....Petitioners

Versus

State of Haryana and others

....Respondents

CORAM: HON'BLE MRS. JUSTICE MANJARI NEHRU KAUL

Present: Mr. Varshit Garg, Advocate, for the petitioners.

Mr. Karan Sharma, DAG, Haryana.

Mr. Rishab Garg, Advocate, for respondents No.2 and 3.

MANJARI NEHRU KAUL, J. (ORAL)

1. Prayer in the instant petition is for quashing of FIR No.260, dated 29.04.2019, under Sections 147, 148, 323, 506 of IPC (Sections 147, 148 of IPC deleted and Section 325 of IPC added lateron), registered at Police Station DLF, District Gurugram (Annexure P-1) and all other consequential proceedings arising out of the same, on the basis of compromise dated 10.10.2024 (Annexure P-3) arrived at, between the parties.

2. Vide order dated 22.10.2024 of this Court, the parties were directed to appear before the learned trial Court/Illaq Magistrate on 27.11.2024 to get their statements recorded regarding the compromise arrived at, between them.

3. Report has since been received from learned Chief Judicial Magistrate, Gurugram, in pursuance of the directions of this Court,

wherein, the factum of the compromise arrived at between the parties stands verified and confirmed. As per the report, compromise has indeed been effected between the parties and the same is without any pressure or coercion and out of their free will and the complainant has also made statement to the effect that he would have no objection if the FIR *qua* the accused-petitioners is quashed.

4. The Trial Court has annexed the copy of statements of the parties, alongwith its report.

5. Learned State counsel too submits that there are no other accused other than the petitioners and respondents No.2 & 3 are the only aggrieved persons in the FIR in question.

6. In view of the report of learned trial Court and the principles laid down by Hon'ble the Apex Court in ***Gian Singh Versus State of Punjab and others (2012) 10 SCC 303***, and also by the Full Bench of this Court in ***Kulwinder Singh and others Versus State of Punjab and another, 2007(3) RCR (Criminal) 1052***, the instant petition is allowed. The aforesaid FIR and all consequential proceedings arising out of it, are quashed qua petitioners.

7. Needless to say the parties shall remain bound by the terms of compromise and their statements recorded before the Court below.

(MANJARI NEHRU KAUL)
JUDGE

January 07, 2025

sanjeev	Whether speaking/reasoned:	Yes/No
	Whether reportable:	Yes/No